

		19. The notice letter should state the url for the settlement administrator's website and should also state that the settlement administrator will post the judgment on the website for at least 180 days. 20. The settlement administrator identified in the notice letter is not the settlement administrator that submitted a declaration to the court. ROA 518. <u>As to the proposed order and judgment (ROA 517):</u> 21. The proposed order and judgment should be revised consistent with the above. 22. Counsel information should be removed from the caption page. 23. The proposed order and judgment should state defendant is funding the settlement in two installments. 24. The parties must submit a Word version of the proposed order. 25. The proposed order and judgment should include a statement that the court retains jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. The hearing on plaintiff's motion for approval is continued to <u>October 22, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
14	Torres-Sanabria v. National Instruments Corporation, et al. 2023-01369943	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future

ones, and to maximize enforcement of state labor laws.” *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.

The court has reviewed and considered the papers filed in support of plaintiff’s motion for approval of a \$90,000 PAGA settlement. The court has the following questions and comments:

1. Were the motion papers submitted to the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected.
2. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief.

As to the settlement:

3. The parties should provide the high and low individual PAGA payments.
4. Plaintiff should state his total compensation to be received (including for any individual claims).
5. The “Released Parties” provision in paragraph 1.26 is overbroad. It includes unrelated, ambiguous unidentified and/or “indirect third parties such as “members,” “agents, representatives, attorneys, insurers, partners, investors, . . . franchisees, administrators, . . . affiliates, . . . staffing agencies, and joint venturers, and all persons acting under, by, through, or in concert with any of them, and each of them.”
6. The phrase “Error! Reference source not found” in paragraph 2.1 should be revised. The same phrase appears in paragraph 11 of the Lazar Declaration (ROA 102).
7. The phrase “the State of California and the Labor and Workforce Development Agency” in paragraphs 5 and 5.1 should be replaced with “and the Aggrieved Employees.”
8. The phrase “but not limited to” in paragraph 5.1 should be removed.
9. Plaintiff’s counsel seeks attorneys’ fees totaling one-third of the Gross Settlement Amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 25% of the Gross Settlement Amount in connection with this modest settlement. Plaintiff’s counsel should address in the supplemental filings whether any such unique circumstances exist here.
10. Plaintiff’s counsel must submit copies of time records, billing statements, or other records contemporaneously documenting the work performed and time spent detailing

		the specific tasks performed on the case, the time spent on each task, and the individual(s) who performed the task. 11. Plaintiff's counsel seeks litigation costs in the amount of \$15,454.46. Bibiyan Decl. (ROA 96) ¶ 38 & Ex. 1. Postage, FedEx and copying charges are not recoverable and should be removed. Plaintiff's counsel should submit invoices substantiating the mediation and "expert date consultant" fees. Plaintiff's counsel should also explain why costs totaling approximately 17% of the gross settlement amount are reasonable for this case. 12. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 13. The parties (plaintiff and defendants) should state in declarations filed with the court whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in the action being settled. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural statues of the case, and describe the impact of the settlement on that case. <u>As to the notice letter:</u> 14. The notice letter should be revised consistent with the above. 15. The notice letter should (i) provide an explanation of PAGA; (ii) describe the factual allegations of the operative complaint; (iii) describe the scope of released claims; (iv) state the gross settlement amount, net settlement amount, and the portions allocated to the LWDA and the aggrieved employees; (v) explain how the individual payments will be calculated; (vi) describe the recipient's responsibility for any taxes payable on the amount received; and (vii) notify the aggrieved employees that they cannot opt out of the settlement and that, even if they do not cash their checks, they will be bound by the release. 16. The phrase "of the Released Claims" should be removed in the first full paragraph on page 2. 17. The third full paragraph on page 2 should be removed, as it appears inapplicable and is inconsistent with the paragraph above it. 18. Will the settlement administrator maintain a website for this case? If so, the notice letter should provide the URL for case website and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days.
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		parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
15	West v. Amen Clinics, Inc., a Medical Corporation, et al. 2024-01423922	<u>Defendants Amen Clinics, Inc., Amen Clinics Los Angeles, P.C., Amen Clinics Northern California, P.C., Amen Clinics Southern California, P.C., and Mindworks Innovations, Inc.'s Motion to Bifurcate</u> Defendants Amen Clinics, Inc., Amen Clinics Los Angeles, P.C., Amen Clinics Northern California, P.C., Amen Clinics Southern California, P.C., and Mindworks Innovations, Inc. move for an order bifurcating the issue of plaintiff Gregory West's employment status and staying class discovery until after a determination of plaintiff's employment status. For the following reasons, defendants' motion to bifurcate is denied without prejudice to addressing bifurcation closer to trial and the motion to stay class discovery is denied. California Civil Procedure Code section 598 states that the court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, with some exceptions that do not appear to apply here. The order shall be made no later than the close of the pretrial conference in cases in which a pretrial conference is to be held or, in other cases, no later than thirty days before the trial date. <i>Id.</i> The court, on its own motion, may make such an order at any time. <i>Id.</i> Civil Procedure Code section 1048(b) states that "[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." <i>See also</i> Civ. Proc. Code § 379.5. The court will hold a pretrial conference approximately 30 days before the trial date. Thus, in this case, and pursuant to section